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February 25, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 333

By: Haste

An Act relating to the Oklahoma Housing Authorities Act; amending 63 O.S. 2021, Section 1054, which relates to definitions; updating statutory references; modifying definition; providing criteria; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1054, is amended to read as follows:

Section 1054. The following terms, wherever used or referred to in ~~this act~~ the Oklahoma Housing Authorities Act, shall have the following respective meanings, unless a different meaning clearly appears from the context:

~~(a) 1. "Authority" means any public body corporate and politic created by this act. the Oklahoma Housing Authorities Act;~~

~~(b)~~ 2. "City" means any incorporated city or town in the state;

3. "County" means any county in the state;

~~(e)~~ 4. "Governing body" means, in the case of a city, the

council or other governing body of the city in which is vested

legislative authority customarily imposed on the city council, and,

in the case of a county, the board of county commissioners~~;~~;

~~(d)~~ 5. "Mayor" means the mayor of the city or the officer

thereof charged with the duties customarily imposed on the mayor or

executive head of a city~~;~~;

~~(e)~~ 6. "Clerk" means the city clerk or the county clerk, as the

case may be~~;~~;

~~(f)~~ 7. "Area of operation" means:

~~(1)~~ a. in the case of an authority of a city, the city and

the area within one (1) mile of the territorial

boundaries thereof, except that the area of operation

of an authority of any city shall not include any area

which lies within the territorial boundaries of some

other city~~;~~;

~~(2)~~ b. in the case of an authority of a county, all of the

county for which it is created~~;~~; Provided, that a

county authority shall not undertake any project

within the boundaries of any city unless a resolution

shall have been adopted by the governing body of the

city and by any authority which shall have been

~~theretofore~~ established and authorized to exercise its

powers in the city declaring that there is need for

1 the county authority to exercise its powers within
2 that city. No authority shall operate in any area in
3 which an authority already established is operating
4 without the consent by resolution of the authority
5 already operating therein~~;~~, and

6 c. in the case of an authority of a city or of a county
7 and only for the purpose of construction or
8 rehabilitation projects, beginning on the effective
9 date of this act, anywhere within this state;
10 provided, such city or county housing authority has
11 consulted with the city, county or counties, and all
12 other active and duly certified city and county
13 housing authorities, if any, where the project or
14 projects are located;

15 ~~(g)~~ 8. "Federal government" ~~includes~~ means the United States of
16 America, the ~~Public Housing Administration~~ United States Department
17 of Housing and Urban Development, or any other agency or
18 instrumentality, corporate or otherwise, of the United States of
19 America~~;~~;

20 ~~(h)~~ 9. "Slum" means any area where dwellings predominate which
21 by reason of dilapidation~~;~~ overcrowding~~;~~ faulty arrangement or
22 design~~;~~ lack of ventilation, light, or sanitary facilities~~;~~ or any
23 combination of these factors, are detrimental to safety, health, and
24 morals~~;~~;

~~(i)~~ 10. "Housing project" or "project" means any work or undertaking on contiguous or noncontiguous sites:

~~(1)~~ a. to demolish, clear, or remove buildings from any
slum area~~;~~

~~(2)~~ b. to provide or assist in providing (by any suitable method, including, but not limited to: rental; sale of individual units in single or multifamily structures under a conventional, condominium, or cooperative sales contract; lease-purchase agreement; loans; or subsidizing of rentals or charges for housing projects located within the territorial boundaries of the authority of a city or county but excluding the expanded area of operation as defined in subparagraph c of paragraph 7 of this section) decent, safe, and sanitary urban or rural dwellings, apartments, or other living accommodations for persons of low income~~;~~, or

~~(3)~~ c. to accomplish a combination of ~~the foregoing~~
subparagraphs a and b of this paragraph. Such work or
undertaking may include buildings, land, equipment,
facilities, and other real or personal property for
necessary, convenient, or desirable appurtenances;
streets, sewers, water service, utilities, parks, site
preparation, and landscaping; and facilities for

1 administrative, community, health, recreational,
2 welfare, or other purposes. The term "~~housing~~
3 ~~project~~" housing project or "~~project~~" project also may
4 be applied to the planning of the buildings and
5 improvements, the acquisition of property or any
6 interest therein, the demolition of existing
7 structures, the construction, reconstruction,
8 rehabilitation, alteration, or repair of the
9 improvements and all other work in connection
10 therewith; and the term shall include all other real
11 and personal property and all tangible or intangible
12 assets held or used in connection with the housing
13 project.

14 ~~(j)~~ 11. "Persons of low income" ~~shall mean~~ means persons or
15 families who lack the amount of income which is necessary (as
16 determined by the authority undertaking the housing project) to
17 enable them, without financial assistance, to live in decent, safe,
18 and sanitary dwellings, without overcrowding; however, the local
19 housing authority shall not exceed the guidelines in establishing
20 incomes set forth by the United States Department of Housing and
21 Urban Development.

22 ~~(k)~~ 12. "Bonds" means any bonds, notes, interim certificates,
23 debentures, or other obligations issued by an authority pursuant to
24 ~~this act.~~ the Oklahoma Housing Authorities Act;

1 ~~(l)~~ 13. "Real property" ~~includes~~ means all lands, including
2 improvements and fixtures thereon, and property of any nature
3 appurtenant thereto, or used in connection therewith, and every
4 estate, interest, and right, legal or equitable, ~~therein~~ including
5 terms for years;i

6 ~~(m)~~ 14. "Obligee of an authority" or "obligee" ~~includes~~ means
7 any bondholder, agent or trustee for any bondholder, or lessor
8 demising to the authority property used in connection with a
9 project, or any assignee or assignees of such lessor's interest or
10 any part thereof, and the federal government when it is a party to
11 any contract with the authority;i

12 ~~(n)~~ 15. "Persons engaged in national defense activities" means
13 persons in the Armed Forces of the United States~~+~~, and employees of the
14 Department of Defense~~+~~, and workers engaged or to be engaged in
15 activities connected with national defense. The term also includes
16 the families of the persons, employees, and workers who reside with
17 them;i

18 ~~(o)~~ 16. "Major disaster" means any flood, drought, fire,
19 hurricane, tornado, earthquake, storm, or other catastrophe which,
20 in the determination of the governing body, is of sufficient
21 severity and magnitude to warrant the use of available resources of
22 the federal, state, and local governments to alleviate the damage,
23 hardship, or suffering caused thereby;i and

~~(p)~~ 17. "State public body" means any city, county, municipal corporation, commission, district, authority, agency, subdivision, or public body of the state.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE AND TOURISM
February 25, 2025 - DO PASS AS AMENDED BY CS